

25VECV03730 25VECV03730

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV03730 Hearing Date: September 28, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Lance Paris,

Plaintiff.

v.

Inez B. Drummond

Defendant.

Case Number Department

25VECV03730 107

COURT'S [TENTATIVE]
ORDER RE:

Interlocutory

Judgment of Partition by Sale and Appointment of Partition Referee

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

Plaintiff

Lance Paris ("Plaintiff") and Defendant Inez B. Drummond ("Defendant") each hold a one-half interest in property located at 6935 Amestoy Ave., Lake Balboa, CA 91406 (the "Property") as joint tenants. (Complaint ¶¶ 2-4.)

On

July 7, 2025, Plaintiff filed a verified complaint for partition by sale of real property against Defendant and Does 1 to 10.

On

April 13, 2026, Plaintiff filed a motion for interlocutory judgment of partition by sale and appointment of partition referee (the "Motion"). On September 15, 2026, Defendant filed an opposition. As of September 22, 2026, no reply has been filed.

II.

THE

OPPOSITION

Oppositions

are due to be filed and served at least nine court days before the hearing date. (Code Civ. Proc., § 1005, subd. (b).) Defendant filed the opposition only eight court days before the hearing. "A trial court has broad discretion to accept or reject late-filed papers." (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its discretion and consider the opposition.

III.

LEGAL

STANDARD

Code

of Civil Procedure section 872.710 states:

(a)

At

the trial, the court shall determine whether the plaintiff has the right to partition.

(b)

Except

as provided in Section 872.730, partition as to concurrent interests in the property shall be as of right unless barred by a valid waiver.

(c)

Partition

as to successive estates in the property shall be allowed if it is in the best interest of all the parties. The court shall consider whether the possessory interest has become unduly burdensome by reason of taxes or other charges, expense of ordinary or extraordinary repairs, character of the property and change in the character of the property since creation of the estates, circumstances under which the estates were created and change in the circumstances since creation of the estates, and all other factors that would be considered by a court of equity having in mind the intent of the creator of the successive estates and the interests and needs of the successive owners.

Code

of Civil Procedure section 872.720 states:

(a)

If

the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.

(b)

If

the court determines that it is impracticable or highly inconvenient to make a single interlocutory judgment that determines, in the first instance, the interests of all the parties in the property, the court may first ascertain the interests of the original concurrent or successive owners and thereupon make an interlocutory judgment as if such persons were the sole parties in interest and

the only parties to the action. Thereafter, the court may proceed in like manner as between the original concurrent or successive owners and the parties claiming under them or may allow the interests to remain without further partition if the parties so desire.

“Partition

in kind is favored ‘since this does not disturb the existing form of inheritance or compel a person to sell [their] property against [their] will. Forced sales are strongly disfavored.” (Butte Creek Island Ranch v. Crim (1982) 136 Cal.App.3d 360, 366.) “The burden of proof remains upon the party endeavoring to force a sale.” (Id.)

Two

types of evidence are sufficient to justify a partition by sale rather than physical division. (Butte Creek Island Ranch v. Crim, supra, 136 Cal.App.3d at p. 366.) “The first is evidence that the property is so situated that a division into subparcels of equal value cannot be made.” (Id.) “In order to meet this test the party desiring a partition sale must show that the land cannot be divided equally.” (Id.) “The second type of evidence which supports a partition sale rather than physical division is economic evidence to the effect that, due to the particular situation of the land, the division of the land would substantially diminish the value of each party's interest.” (Id. at p. 367.)

IV.

DISCUSSION

Plaintiff

moves for an interlocutory order of partition by sale directing the Property be sold by private sale subject to overbidding. (Motion pp. 1-2.) Plaintiff argues that “[w]here, as here, a parcel of real property is jointly owned by two or more parties, and the request of one of the owners to divide the interests of the parties is opposed, the party desiring the division of interests may do so by bringing an action for Partition against the other owners.” (Motion p. 3.)

In

opposition, Defendant argues Plaintiff has not shown they are entitled to partition because Plaintiff “merely asserts that the parties are co-owners of equal one-half interests” but does not attach or authenticate a deed, provide a title report, offer evidence showing Plaintiff's claimed ownership percentage,

or submit a declaration by Plaintiff. (Opposition pp. 4-5.) Defendant states they are disputing Plaintiff's ownership interest. (Opposition p. 5.) Defendant further argues Plaintiff has not shown a sale is more equitable than division or immediate appointment of the referee is warranted. (Opposition p. 5) Finally, Defendant argues a partition proceeding must preserve their right to an equitable accounting before distribution and Defendant has preserved her claims for adjustments. (Opposition pp. 6-8.)

Plaintiff

states Plaintiff and Defendant "are co-owners of an undivided one-half interest in the [Property]." (Motion p. 3.) The only evidence submitted with the Motion is the proposed referee's declaration and exhibits attached to that declaration. (Anand Declaration.) Plaintiff cites no evidence establishing Plaintiff's interest in the Property. Plaintiff also fails to cite or submit evidence justifying a partition by sale rather than by physical division. (See Butte Creek Island Ranch v. Crim, supra, 136 Cal.App.3d at p. 366.) Plaintiff has not met their burden.

V.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: September 28, 2026 _____ Hon. Eric Harmon

Judge

of the Superior Court